

**CHAPTER cxxiv.**

An Act to authorise the Exmouth Urban District Council A.D. 1900.
to purchase the undertaking of the Exmouth and
District Waterworks Company and to supply water
within their district and the parish of East Budleigh
and for other purposes. [30th July 1900.]

WHEREAS the urban district of Exmouth in the county of Devon (in this Act called "the district") is under the government of the Exmouth Urban District Council (in this Act called "the Council") :

And whereas the Exmouth and District Waterworks Company (in this Act called "the company") under and by virtue of the Exmouth and Budleigh Salterton Waterworks Act 1864 the Exmouth and District Water Act 1880 and the Exmouth and District Water Act 1892 have constructed waterworks and are supplying water within an area comprising the district and the parish of East Budleigh :

And whereas it is expedient that the water supply of the district should be under the control of the Council and that the undertaking of the Company should be transferred to and vested in the Council in manner provided by this Act and that further provision should be made in regard to the supply of water within the limits of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council of the amount required for the purchase of the land which the Council are by this Act authorised to acquire and for the extension and improvement of the water undertaking and such amount is 4,000*l.* :

And whereas the several works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the Council at a meeting held on the fifteenth day of November one

A.D. 1900. — thousand eight hundred and ninety-nine after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the "Exmouth Chronicle" a local newspaper published or circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the third day of January one thousand nine hundred being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas a plan of the lands required or which may be taken for the purposes or under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Devon and are in this Act respectively referred to as the deposited plan and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Exmouth Urban District Water Act 1900.

Incorporation of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely :—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts; and

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpreta-
tion.

“The Council” means the Exmouth Urban District Council;

“The district” means the urban district of Exmouth;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“The company” means the Exmouth and District Waterworks company;

“The undertaking of the company” includes all the waterworks mains lands buildings and plant and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the company at the date of the transfer of their undertaking to the Council under the provisions of this Act except the books and papers relating exclusively to the shareholders in and the members and constitution of the company;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities payable to bearer) authorised by or under any Act of Parliament passed or to be passed of any local authority as defined by section 34 of the Local Loans Act 1875 other than the Council.

4. The limits of this Act for the supply of water shall be the district and the parish of East Budleigh in the county of Devon. Provided that the Council shall not supply water in pursuance of this Act until they have purchased the undertaking of the company.

Limits of
Act.

A.D. 1900.

Company
to sell their
undertaking
to Council.

PURCHASE OF UNDERTAKING.

5.—(1) The company shall sell to the Council and the Council shall purchase the undertaking of the company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the Council and the expression "lands" shall mean the undertaking of the company.

(2) Within six months after the passing of this Act the Council shall serve upon the company notice of their intention to purchase the undertaking of the company.

(3) In addition to the sums to be paid by the Council to the company under the foregoing provisions of this section the Council shall on or before the first day of June one thousand nine hundred and one or the date of the transfer (whichever date shall first happen) pay to the company the sum of two thousand pounds in respect of the costs and expenses incurred by them preliminary to and of and incident to the promotion by them of their Bill in the present session and their opposition to the Bill for this Act and in respect of their costs and expenses of and incident to the transfer of the undertaking of the company and the winding-up of the company.

(4) The Council shall pay the purchase money to the company on such day as may be agreed between the Council and the company or failing agreement on the twenty-fourth day of March the twenty-third day of June the twenty-eighth day of September or the twenty-fourth day of December which shall first happen after the expiration of two months from the determination of the amount of the purchase money and upon such payment the undertaking of the company with their rights powers and privileges shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council free from all charges debts and liabilities upon or affecting the same other than the mortgage debt hereinafter mentioned and such transfer and vesting are in this Act referred to as "the transfer."

(5) The Council shall also pay compensation to any officers and servants in the regular employment of the company who shall not be retained by the Council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company at the

passing of this Act in respect of any loss of office or loss or diminution of salary or income by reason of the transfer of the undertaking of the company to the Council the amount of such compensation in default of agreement to be determined by arbitration and no officer or servant who has been in the employment of the company for fourteen years or upwards shall lose his right to compensation as aforesaid by reason of his declining to enter into or continue in the service of the Council Provided that the secretary of the company shall not lose his right to compensation as aforesaid by reason of his holding or continuing to hold the office of clerk to the Council. A.D. 1900.

6. The receipt in writing of three directors of the company for any money paid to them by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Council are unable to obtain such receipt from the company they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company. Receipt for purchase money.

7. The Council shall from the date of transfer take over the mortgage debt of the company amounting to seven thousand pounds and shall relieve the company from all liability for payment of the same and all interest accruing thereon from the date of transfer and the said mortgage debt shall after the date of transfer be charged on the net revenue of the water undertaking of the Council. Council to take over mortgage debt of company.

8. The company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the date of the transfer and as from that date all outgoings (and the interest on the mortgage debt) shall be borne and paid by the Council Provided that nothing in this Act contained shall entitle the company to retain for their own benefit so much of any water rates or rents or other payments paid or payable in advance as shall be attributable to any period after the transfer but such rates rents or other payments shall be apportioned and so much thereof as is attributable to any period after the transfer shall be paid over by the company to the Council. Company to pay outgoings and be entitled to receipts until transfer.

9. Until the transfer the undertaking of the company shall be maintained and carried on by the company as heretofore in the Maintenance of undertaking by

A.D. 1900.
—
company till
transfer.

ordinary course of business but the company shall not without the previous consent of the Council under the hand of their clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

Liabilities to
be defrayed
by company.

10. All debts and liabilities other than the mortgage debt upon or affecting the undertaking or due from or payable by the company which at the date of the transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and the company shall indemnify the Council against the same and if at the date of the transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

Contracts of
company to
be binding
on Council.

11. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the company and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the company the Council had been a party thereto.

Application
of purchase
money pay-
able to the
Company.

12. The company shall hold the purchase money paid to them by the Council under this Act in trust to discharge pay or satisfy the debts and liabilities (other than the mortgage debt) upon or affecting the undertaking of the company or due from or payable by them including moneys which the directors of the company have expended or become liable to pay on behalf of the company and as to the residue thereof in trust to pay apply and distribute the same amongst the shareholders in the company rateably according to the amount of the maximum dividend payable to each shareholder and for the purpose of such distribution the several persons whose names shall appear in the books of the company at the date of the transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders in the company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any of such persons who shall be an idiot lunatic or minor shall be an effectual discharge to the company and the directors thereof for the money therein expressed to be

received and shall exonerate them from any obligation affecting the shares or interest in respect whereof that money is paid. A.D. 1900.

13. Where the directors of the company are for six months after the transfer unable after diligent inquiry to ascertain the person to whom any part of the purchase money for the undertaking of the company is payable or where any part thereof is payable to a person by or on behalf of whom an effectual receipt cannot be given or on account of any other reasonable cause the directors may pay the same into the Supreme Court or if not exceeding five hundred pounds into the county court of Devonshire holden at Exeter under any Act for the time being in force for the relief of trustees and every such payment into court shall conclusively discharge the company and directors from all further liability with respect to the money so paid. Payment into court by directors.

14.—(1) So soon as conveniently may be after the transfer the affairs of the company shall be wound up and for that purpose the directors of the company then in office and the survivors of them shall continue in office without re-election and may and shall exercise all powers necessary for discharging paying and satisfying the charges debts and liabilities (other than the mortgage debt) upon or affecting their undertaking or due from or payable by the company at the time of the transfer and for distributing the purchase money and winding up the affairs of the company and when and so soon as such charges debts and liabilities (other than the mortgage debt) shall have been discharged paid and satisfied and such money shall have been distributed and the affairs of the company wound up the company shall be by virtue of this Act dissolved. Winding up and dissolution of company.

(2) If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

(3) After the date of transfer and until the dissolution of the company they shall be entitled to access at all reasonable times to the books documents and accounts relating to the undertaking for all or any of the purposes of this section.

15. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Council. Books &c. to remain evidence.

16. The Exmouth and Budleigh Salterton Waterworks Act 1864 the Exmouth and District Water Act 1880 and the Exmouth and Repeal of Acts.

A.D. 1900. District Water Act 1892 shall as from the transfer to the Council of the undertaking of the company be repealed except so far as may be necessary to give effect to the provisions of this Act and except section 42 of the Exmouth and Budleigh Salterton Waterworks Act 1864 and section 16 of the Exmouth and District Water Act 1892 which are set forth in the schedule to this Act and which shall apply and have effect as if the Council were therein referred to instead of the company subject nevertheless to any alteration or modification of the provisions of those sections which may have been agreed or arranged between the company and the persons mentioned in those provisions prior to the passing of this Act.

MAINTENANCE AND CONSTRUCTION OF WORKS AND SUPPLY OF WATER.

Power to
maintain
existing
waterworks
and supply
water.

17. The Council may maintain repair renew alter enlarge and extend the reservoirs mains pipes and other waterworks for the time being belonging to them by virtue of this Act or otherwise and may use and employ the same for the purpose of taking intercepting and impounding water and may take intercept and impound any water which might have been taken intercepted or impounded by the company if this Act had not been passed and may sell and supply water in accordance with the provisions of this Act.

Power to
take lands.

18. Subject to the provisions and for the purposes of this Act the Council may enter upon take and use all or any of the lands delineated on the deposited plan and described in the deposited book of reference :

Provided that the Council shall not in the exercise of the powers of this section acquire (except with the consent of the London and South Western Railway Company) any land being part of the lands numbered on the deposited plan 1 2 3 and 5 which that company now have power to purchase compulsorily and that (except with the like consent) the Council shall not construct any works authorised by this Act upon nor shall they in pursuance of the powers of this Act acquire so much of the land numbered 4 on the deposited plan as is situate within a distance of 100 feet north of the centre line of railway shown on the plans deposited in respect of the South Western Railway Act 1898 for the Exmouth and Salterton Railway.

For pro-
tection of
Rolle
Estate.

19. For the protection of the Honourable Mark George Kerr Rolle of Stevenstone and Bicton in the county of Devon and the trustees of the will of the Right Honourable John Lord Rolle deceased and his and their successors and assigns owners of estates in the said county known as the Rolle Estate (hereinafter referred

to as and included in the expression "the owner") the following provisions shall unless otherwise agreed between the Council and the owner apply and have effect (that is to say) :— A.D. 1900.

(1) Notwithstanding anything contained in this Act the Council shall not acquire except by agreement any lands of the owner other than a piece of land not exceeding three acres in extent being part of the lands numbered 4 on the deposited plan :

(2) Upon the acquisition by the Council under the powers of this Act of any land of the owner there shall be reserved to the owner all game wild fowl and rabbits upon or within such land or upon or within any other lands formerly belonging to the owner and acquired by the Council under the powers of this Act with power to the owner to enter upon the said lands for the purposes of this subsection Provided as follows :—

(A) The right reserved in pursuance of this subsection shall not be assigned demised or otherwise disposed of or parted with wholly or partially to any person but such right shall be exercised only by the owner his family visitors personal friends and servants ;

(B) The right reserved in pursuance of this subsection shall not be exercised so as to injure any part of the undertaking or works for the time being of the Council or to injuriously affect their water or the supply thereof.

20. The Council in addition to the waterworks for the time being belonging to them by virtue of this Act may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices bye-washes water-towers overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that the Council shall not on any of the said lands sink any shaft well or bore or construct any works whatever for the purpose of collecting or abstracting underground water. Power to make subsidiary works.

21. The Council in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold for the purposes of this Act and of their water undertaking any lands not exceeding in the whole twenty acres Provided that the Council shall not create or permit the creation or Power to purchase additional lands by agreement.

A.D. 1900. continuance of any nuisance on any such lands nor erect or authorise or permit the erection thereon of any buildings except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks.

Persons under disability may grant easements &c.

22. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Restriction on taking houses of labouring class.

23.—(1) The Council shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Council purchase or acquire any house or houses under the powers by this Act granted in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any tenement separately occupied by any person or persons and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Reservation of water rights &c. on sale.

24. The Council on selling any lands acquired by them in connexion with their water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the

sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. A.D. 1900.

25. The Council may hold any lands acquired by them for the purposes of their water undertaking which they may deem necessary for the purpose of preventing the fouling of any water which they are authorised to take or for the protection of their waterworks against nuisances encroachment or injury and so long as such lands shall be so held they shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Council shall not erect any buildings upon the lands while so held by them except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks. Power to hold lands for protection of works.

26.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Council may by agreement purchase take on lease and acquire any lands in the areas in or over which any streams or waters which the Council are for the time being authorised to take arise or flow (which areas are in this Act referred to as "the drainage areas") and may hold such lands and any other lands which the Council may have acquired within the drainage areas so long as they shall deem it necessary or expedient for the purposes aforesaid. Power to purchase and hold lands and exercise powers for protection of waters and waterworks.

(2) The Council may in and upon the lands acquired within the drainage areas construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Council are empowered to take from being polluted fouled contaminated or discoloured and the Council may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining the lands in the drainage area subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

27. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage areas with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more Power to agree as to drainage of lands &c.

A.D. 1900.

effectually collecting conveying and preserving the purity of the waters which the Council are for the time being authorised to divert collect or appropriate flowing to upon or from such lands directly or derivatively into the reservoirs or works of the Council.

Byelaws for
securing
purity of
water.

28.—(1) The Council may make byelaws for securing the purity of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper sanitary conveniences and make provision for the prevention of nuisances and the prevention or regulation of any act or thing tending to pollution of the water.

(2) The byelaws made under this section shall be in force within the drainage areas or within so much of those areas as may be defined in the byelaws.

(3) Provided that one month at least before submitting any such byelaws to the Local Government Board for confirmation a copy thereof or of the draft byelaws shall be furnished to the district council of every district comprising any part of the area within which it is proposed that the byelaws shall be in force and every such district council shall be entitled to lay before the Local Government Board any observations or objections respecting the same.

(4) The Council shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section who shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Limit of
pressure.

29. The water supplied by the Council need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the existing service reservoir of the company.

Rates for
supply of
water for
domestic
purposes.

30.—(1) The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum hereinafter specified (that is to say):—

Where the rateable value of the premises so supplied with water does not exceed five pounds the sum of eight shillings and eightpence ;

Where such rateable value exceeds five pounds and does not exceed twenty pounds the rate of seven pounds ten shillings per centum upon such rateable value ;

Where such rateable value exceeds twenty pounds the rate of six pounds per centum upon such rateable value : A.D. 1900.

Provided that the Council shall in no case be entitled to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum of money than they would be entitled to demand if such house or part of a house were of just such higher rateable value as would bring it within another division of the said scale.

(2) The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

31. In addition to the foregoing charges the Council may charge in respect of the first fixed bath on any premises capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every such fixed bath after the first a sum not exceeding five shillings and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate. Rates for baths.

32. The Council may demand and take from all persons requiring or taking any supply of the Council's water for the purposes of shipping any sums not exceeding one shilling for the first one hundred gallons or any quantity less than one hundred gallons and sixpence for every additional one hundred gallons or any additional quantity less than one hundred gallons so supplied and may require payment for the same in advance. Rates for supply to shipping.

33. The Council shall not be compelled to supply with water any watercloset or any bath or the apparatus or pipes connected therewith respectively unless the same be so constructed and used as to prevent the contamination of the water of the Council nor any bath which shall be capable of containing when filled for use more than fifty gallons of water. Provided that the foregoing provisions shall not entitle the Council to cut off or discontinue the domestic supply of the house in which such watercloset or bath is situate. Council not to be compelled to supply certain closets of baths.

A.D. 1900.

Rate payable
by owners of
small houses.

34.—(1) The provisions of section 72 of the Waterworks Clauses Act 1847 shall extend to all dwelling-houses or parts of dwelling-houses occupied as separate tenements and let for any period less than a quarter of a year.

(2) In any case arising under that section or this section the rate may be recovered in the first instance from the occupier and may be deducted by him from rent from time to time due from him to the owner but no greater sum shall be recovered at any one time from any occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to a notice to pay the rate being given to him or left at his dwelling-house.

Supply by
meter in
certain cases.

35.—(1) The Council shall not be bound to supply with water otherwise than by measure any building used partly as a dwelling-house and partly as a warehouse or for any trade or manufacturing purpose for which water is required or any workhouse hospital or other large public institution.

(2) Where the Council refuse to supply with water any building referred to in this section otherwise than by measure they shall on the application of the occupier of such building supply the same with sufficient water for domestic purposes at a rate not exceeding two shillings for every thousand gallons and the moneys payable to the Council under this section shall be recoverable in the same manner as rates due to the Council for water. Provided that the Council shall not be compelled to afford to any premises a supply of water by measure for a less sum in any one quarter of a year than the amount of the rate which would have been payable in respect of such premises for a supply of water otherwise than by measure.

Council not
bound to
supply sev-
eral houses
by one pipe.

36. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of
discontinu-
ance of
supply.

37. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Byelaws for
preventing
waste &c. of
water.

38.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in

this Act referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. A.D. 1900:

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

39. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Supply of water for other than domestic purposes and by measure.

40.—(1) The Council may sell meters and any water fittings upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell or let meters.

(2) The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

41. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Council of connecting or disconnecting meters.

42.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Injuring meters &c.

A.D. 1900. Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to supply materials.

43. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such water fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

Power to lay pipes in streets not dedicated to public use.

44. The Council may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or

renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply. A.D. 1900.

45. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of the local authority of and of any company or person supplying water under Parliamentary authority within the district to be supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of this Act. Contracts for supplying water in bulk.

FINANCE AND MISCELLANEOUS.

46.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

(A) For the purchase of the undertaking of the company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Council (other than the costs of this Act) such sum as may be necessary ;

(B) For the payment of the mortgage debt of the company the sum requisite for that purpose ;

(C) For the purchase of the land which the Council are by this Act authorised to acquire and for the extension and improvement of the water undertaking the sum of four thousand pounds ;

(D) For paying the taxed costs and expenses of this Act as hereinafter provided the sum requisite for that purpose :

And with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of the water undertaking and if they think fit as a collateral security the district fund and general district rate.

47. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned. Certain regulations of Public Health Act 1875 as to borrowing not to apply.

A.D. 1900.

Mode of
raising
money.

48. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions of
Public
Health Act
as to mort-
gages to
apply.

49. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under the provisions of this Act.

Periods for
repayment
of money
borrowed.

50. The Council shall pay off all money borrowed by them under this Act and the mortgage debt of the company within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

As to money borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within fifty years from the date or dates of borrowing the same;

As to the mortgage debt of the company or money borrowed for its repayment within fifty years from the date of transfer;

As to money borrowed for the purposes (C) mentioned in the said section within sixty years from the date or dates of borrowing the same;

As to money borrowed for the purpose (D) mentioned in the said section within five years from the date or dates of borrowing the same;

As to money borrowed with the consent of the Local Government Board within such period as that Board may sanction.

Mode of
payment off
of money
borrowed.

51. The Council shall pay off all money borrowed by them on mortgage under the powers of this Act and the mortgage debt of the company owing at the date of the transfer either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Sinking
fund.

52.—(1) If the Council determine to repay by means of a sinking fund any money borrowed by virtue of this Act or the mortgage

debt of the company such sinking fund shall be formed and maintained either:— A.D. 1900

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking

A.D. 1900. fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

53. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

54. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

A.D. 1900.
Council not
to regard
trusts.

55.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

Appointment
of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

56. If the Council pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed money they may re-borrow the same but all money so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Power to
re-borrow.

57.—(1) The clerk to the Council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts

Return
respecting
sinking fund
to Local
Government
Board.

A.D. 1900. which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of revenue
and de-
ficiency of
receipts.

58.—(1) The Council shall apply all money received by them on account of revenue in respect of the undertaking transferred to and carried on by them in pursuance of this Act in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking:

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments for the purposes of the undertaking:

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking:

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund

A.D. 1900.

so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the undertaking of the Council shall be forthwith made good out of the district fund or general district rate.

59. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Application of money borrowed.

60. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund or general district rate.

Expenses of execution of Act.

61. The proceeds of the sale of any lands of the Council under the powers of this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such moneys shall not be re-borrowed.

Proceeds of sale of surplus lands to be treated as capital.

62.—(1) The Council shall keep the accounts in respect of their water undertaking separate from all their other accounts distinguishing therein capital from revenue.

Separate accounts to be kept and audited.

A.D. 1900.

(2) The accounts of the receipts and expenditure of the Council in respect of the said undertaking shall be audited examined and published in like manner and with the same consequences as the other accounts of the Council are audited examined and published under the Local Government Act 1894.

As to bye-laws.

63. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to byelaws made by the Council under this Act.

Inquiries by Local Government Board.

64.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Authentication and service of notices.

65. Where any notice or other document (except a conveyance contract or security) under this Act requires authentication by the Council the signature thereof by their clerk shall be a sufficient authentication and any notices and other documents required or authorised to be served under this Act may be served in manner prescribed by section 267 of the Public Health Act 1875.

Recovery of penalties.

66. Offences against this Act and penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner.

Application of Public Health Acts.

67. Subject to the provisions of this Act the Council may for the purposes of their water undertaking exercise all or any of the powers conferred upon a local authority by sections 51 54 64 and 176 of the Public Health Act 1875 and in the exercise of those powers and subject as aforesaid the provisions of that Act shall apply to the Council and their water undertaking in the same manner and to the same extent as they would have applied if such undertaking had been established under the Public Health Acts and

had been one of the purposes of those Acts Provided that the A.D. 1900.
provisions of the Public Health Act 1875 in regard to the borrowing
of money and to the repayment thereof shall not apply to the
borrowing of any money for the purposes of such undertaking or
to the repayment thereof.

68. All the costs charges and expenses preliminary to and of and Costs of Act.
incidental to the preparing applying for obtaining and passing of
this Act as taxed by the taxing officer of the House of Lords or the
House of Commons shall be paid by the Council and may in the
first instance be paid out of any moneys in their hands but shall
be charged to and recouped out of moneys to be borrowed under
this Act.

A.D. 1900.

The **SCHEDULE** referred to in the foregoing Act.

SECTIONS OF COMPANY'S ACTS SAVED FROM REPEAL.

**SECTION 42 OF THE EXMOUTH AND BUDLEIGH SALTERTON WATERWORKS
ACT 1864.**

Saving rights
of lords of
manors.

Nothing in this Act contained shall take away lessen prejudice or affect or authorise the company in any way to interfere with any of the estates rights interests powers or privileges of the lord of the manor of Littleham and Exmouth or the lord of any other manor without or otherwise than in accordance with his respective previous consent in writing except as is by this Act specially authorised.

SECTION 16 OF THE EXMOUTH AND DISTRICT WATER ACT 1892.

For pro-
tection of the
Rollo estate.

For the protection of the Honourable Mark George Kerr Rolle of Stevenstone and Bicton in the county of Devon and the trustees of the will of the Right Honourable John Lord Rolle deceased and his and their successors and assigns owners of estates in the said county known as the Rolle Estate including certain mills on the Budleigh Brook (and hereinafter referred to as and included in the expression "the owners") the following provisions shall unless otherwise agreed between the company and the owners have effect (that is to say):—

- (1) Notwithstanding anything in this Act contained the company shall not take or appropriate any waters from any tributaries of or which may now flow into the Budleigh Brook unless and until they have constructed and completed to the satisfaction of the owners the compensation reservoir by this Act authorised so as to be capable of containing twelve million gallons of water above the discharge pipe together with all necessary conduits pipes and works for discharging water from such reservoir into the Budleigh Brook and for regulating such discharge and all such suitable and convenient bye-washes valves gauges and other works as the owners may approve:
- (2) The said reservoir shall be constructed and completed in accordance with working plans and sections to be previously submitted to and approved by the owners and the embankment thereof and all works connected therewith shall be constructed and completed under the supervision and to the satisfaction of the owners in all respects:
- (3) The said reservoir and works when completed as aforesaid shall belong to and be under the absolute control of the owners who shall have the entire control and regulation of the flow of water into and out of the same:

A.D. 1900.

- (4) Notwithstanding anything shown on the plans of the compensation reservoir the company shall not construct the discharge pipe through the embankment but shall carry the same round the embankment in such manner as the owners may require :
- (5) The company shall construct and maintain a road along the top of the embankment for the purpose of affording access to and from the lands on the south side of the stream :
- (6) The company shall construct and maintain a proper fence to the reasonable satisfaction of the owners round the compensation reservoir :
- (7) The company shall not acquire any greater right or interest in the lands of the owners than an easement or right of constructing the compensation reservoir and works connected therewith and from time to time inspecting maintaining repairing and renewing the same and shall pay for such easement or right such price as failing agreement may be settled by arbitration in manner provided by the Lands Clauses Acts in the case of disputed compensation to be the value of the lands occupied by the said reservoir and works and the company shall also compensate the owners for all damage or injury caused in the construction of the said reservoir and works and shall compensate the tenants of the said lands for all injury or damage which they may suffer by reason of the construction or existence of the said reservoir on the lands such compensation in case of dispute to be settled by arbitration in manner prescribed by the Lands Clauses Acts :
- (8) The compensation reservoir pipes and all other works to be constructed by the company in connexion therewith shall be constructed wholly at the expense of the company and shall after their completion be maintained and kept in proper repair and working condition to the satisfaction of the owners by and at the expense of the company Provided that if at any time any of such works shall be out of repair or in need of repair the company shall forthwith on notice from the owners execute and do all such works and things as may be required by the owners to put the same into proper repair and condition and if they fail within fourteen days to do so the owners may execute and do such works and things and recover the cost thereof with full cost of suit from the company in any court of competent jurisdiction :
- (9) The reservoir and works shall be constructed and maintained solely at the company's risk and the company shall be responsible for all damage (direct or consequential) arising from the construction existence maintenance repair or renewal bursting or failure of the compensation reservoir and the provisions of the Waterworks Clauses Act 1863 with respect to the safety of reservoirs shall extend and apply to the compensation reservoir and the company who shall also save the owners harmless from all claims for compensation or damage in connexion with the impounding of the waters of the Budleigh Brook in the said reservoir :
- (10) If the company take any water in contravention of the provisions of this section they shall forfeit and pay to the owners the sum of fifty pounds for every day on which they so take any water and such sum

[Ch. cxxiv.] *Exmouth Urban District Water* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

shall be recoverable by the owners in any court of competent jurisdiction with the costs of proceedings and such penalty shall be in addition to any other remedy of the owners to enforce any of the provisions of this Act :

- (11) The foregoing provisions of this section shall be accepted and taken by all persons interested in the flow of the water of the Budleigh Brook as full compensation for the appropriation by the company of all the waters of the northern and western tributaries of the Budleigh Brook shown on the deposited plans and situate above the dams by this Act authorised and all waters flowing into or feeding the said tributaries and situate above the said dams :
- (12) The company shall lay or construct the aqueducts conduits or lines of pipe (Works Nos. 2 and 5 by this Act authorised) so that no part thereof shall be at a less depth than two feet six inches below the present surface of the ground and shall properly restore such surface and remove all surplus earth to the satisfaction of the owners.

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